

**SPENCER
OGDEN****STANDARD TERMS AND CONDITIONS OF BUSINESS FOR PERMANENT RECRUITMENT**

THIS AGREEMENT IS BETWEEN: Spencer Ogden Inc. at 1600 Stout Street, Suite 1350, Denver, CO 80202 USA ("Spencer Ogden") and the Client.

WHEREAS this agreement (the "Agreement") constitutes the entire agreement between Spencer Ogden and the Client and shall govern all business between them. Unless agreed otherwise, these terms are agreed on behalf of the division within Spencer Ogden indicated in the top left corner of this page.

1 DEFINITIONS 1.1 In this Agreement the following definitions apply:

APPOINTMENT: means employment or engagement by the Client of a Candidate Introduced by Spencer Ogden, whether on a, permanent, temporary full-time, part-time or other basis and whether directly or indirectly or via any associated company or third party, and 'Appoint' will be construed accordingly;

CANDIDATE: means the individual, partnership, corporate entity or any other person Introduced by Spencer Ogden to the Client;

CLIENT: means the company, firm, corporate entity or person to whom an Introduction is made by Spencer Ogden;

COMPENSATION: means the base salary to be paid to the Candidate by the Client as remuneration for the first year of the Appointment;

FEE: means 30% of Compensation, subject to a minimum fee of \$20,000;

INTRODUCTION: means (i) the provision of any information by Spencer Ogden to the Client (including the provision of a curriculum vitae) which identifies a Candidate and/or (ii) the Client's interview of a Candidate whether in person or by telephone or by any other means, regardless of whether or not the Client knew the Candidate previously, and 'Introduced' will be construed accordingly.

2 AGREEMENT 2.1 This Agreement is effective from the date of an Introduction and shall remain in force unless terminated by either party upon giving no less than thirty (30) days written notice. The Client is deemed to have accepted this Agreement by virtue of an Introduction, an Appointment or the passing of any information about a Candidate to any third party following an Introduction.

2.2 Spencer Ogden is acting as an employment agency. Spencer Ogden will introduce Candidates for permanent Appointment. Should an Appointment take place within twelve (12) months from the date of an Introduction the Client will pay the Fee to Spencer Ogden.

2.3 Introductions are strictly confidential. The provision of any information relating to a Candidate by the Client to any third party resulting in an Appointment by any third party will render the Client liable to pay the Fee.

3 OBLIGATIONS 3.1 The Client authorises Spencer Ogden to advertise the availability of the position which the Client engages Spencer Ogden to seek to fill.

3.2 The Client will notify Spencer Ogden within seven (7) days if a Candidate is already known to it, whether as a result of a previous submission or interview through a source other than Spencer Ogden. The Client agrees not to directly contact any Candidate without prior approval of Spencer Ogden.

3.3 Spencer Ogden will make reasonable efforts to ensure that a Candidate has the necessary experience to be able to work in the position which the Client seeks to fill. However, Spencer Ogden provides an introductory service only and makes no warranty as to the suitability of any Candidate for a particular position. It is the Client's responsibility to satisfy themselves as to the suitability of any Candidate prior to an Appointment. The Client is responsible for reference checking, arranging any required medical examinations, for obtaining any required work permits or other required authorisations and for satisfying any statutory or legal requirements pertaining to an Appointment.

3.4 The Client agrees to provide Spencer Ogden with details of the Compensation as soon as an Appointment has been made. If it fails to provide these details within seven (7) days of an Appointment the Client agrees to pay an increased fee of 40% of Compensation or \$25,000 (whichever is greater).

3.5 The Client will notify Spencer Ogden if an employee of Spencer Ogden whom the Client has had dealings accepts an Appointment with the Client within twelve (12) months of leaving Spencer Ogden's employment. The Client will pay the Fee to Spencer Ogden in respect of such Appointment.

4 PAYMENT 4.1 Spencer Ogden will invoice the Client for the Fee upon the Candidate's start date. The Fee is exclusive of VAT. The Client will pay Spencer Ogden's invoice within forty-five (45) days from the date of invoice.

4.2 Spencer Ogden will charge interest on invoiced amounts unpaid after the due date at the rate of 8% per annum above the base interest rate of HSBC from the due date until the date of payment. The Client will bear any attorneys' fees or court costs or other expenses incurred by the Company as a result of non-payment or late payment of an invoice and Spencer Ogden reserves the right to charge forex for currency fluctuations in the event of late payments.

4.3 The Client will provide Spencer Ogden with the relevant invoicing address on the date of Appointment. The Client will not make any deduction or withhold taxes from any payment to Spencer Ogden. If the Client demonstrates to Spencer Ogden's satisfaction that it is required by law to withhold taxes from a payment the Client may make those withholdings. However, the Client must give a receipt for each payment and increase its payment to Spencer Ogden by the amount necessary to ensure Spencer Ogden receives the full amount it would have received if no withholding had been made.

4.4 Please be aware that there is a significant risk posed by cyber fraud, specifically affecting email accounts and bank account details. It is unlikely that we will need to notify you of a change of our bank account details, but in the unlikely event that we do change our bank details, we will not notify you via email. Please be careful to check account details with us in person if in any doubt. We will not accept responsibility if you transfer money into an incorrect account.

5 GUARANTEE 5.1 Occasionally, for whatever reason and because of the human element involved an Appointment may break down. Spencer Ogden recognizes this and have provided a recruitment credit which will compensate the Client in the event of such a situation. Should a Candidate's employment be terminated by either party within 90 days of commencement, (for reason other than retrenchment, reorganisation, significant changes in job description, transfer, or where the Client has failed to pay the Fee within the agreed payment terms) then Spencer Ogden guarantees to provide a recruitment credit towards future recruitment services. For the avoidance of doubt, an Appointment shall be deemed to be terminated from the date of either the Candidate or the Client notifies Spencer Ogden of their respective decision(s) to bring the Candidate's employment to an end. The recruitment credit applies solely to the Client that originally procured the services of Spencer Ogden and not to any partner or associate company. The value of the credit will be calculated on a pro rata basis (reflected below) taking into account the time already worked at the point of termination. To claim a credit the Client must notify Spencer Ogden in writing within seven (7) days of the termination of an Appointment. Any recruitment credit will be provided to the below scale:

Timeframe	Credit
0-30 days	100%
31 - 60 days	75%
61 - 90 days	50%

The guarantee relates only to the specific job description and therefore Spencer Ogden reserves the right to negotiate its replacement terms should changes occur from the role originally recruited for.

5.2 Spencer Ogden may reclaim any credit extended if within twelve (12) months of the termination of an Appointment the Client re-Appoints any Candidate.**6 LIABILITY 6.1** Save in respect of death or personal injury, to the extent permitted at law Spencer Ogden will have no liability to the Client for any injury, loss, damage, expense or delay incurred by the Client arising directly or indirectly from this Agreement or from any Appointment.**7 GENERAL 7.1** In this Agreement references to the singular include the plural and vice versa. Headings are for convenience only and do not affect interpretation.

7.2 In the event of a conflict between these Terms and any other agreement, the former shall prevail. No variation or alteration to these Terms shall be valid unless the details of such variation are set out in writing and signed by the Client and Spencer Ogden.

7.3 The laws of the state of Texas shall apply to this Agreement and disputes arising are subject to the jurisdiction of the courts of Harris County, Texas.

Signed for and on behalf of **SPENCER OGDEN INC.**
with its corporate headquarters located at 1201 Fannin Street, Suite 300,
Houston, TX 77002, USA

SIGNED

PRINT NAME:

TITLE:

DATE:

Signed for and on behalf of Vestas America Holding, Inc. **THE CLIENT**
Registered address: 1417 NW Everett Street, Portland, OR 97209
with the Employers Identification Number: 27-1561927

SIGNED

PRINT NAME:

TITLE:

DATE:

Greg Taff

Talent Acquisition Partner

4/23/2018